

To provide for the planning, design and construction of buildings and associated works; to make provision for the rendering safe of dangerous buildings and land; to make provision for regular inspections of buildings and the associated repairs to prevent the buildings from becoming unsafe; and to make provision for matters connected therewith.

(Replaced 72 of 1980 s. 2. Amended 16 of 2011 s. 3)

[1 June 1956] *G.N.A. 45 of 1956*

(Format changes—E.R. 1 of 2012)

1. Short title

- (1) This Ordinance may be cited as the Buildings Ordinance.
- (2) This Ordinance shall apply to the New Territories in the manner provided by the Buildings Ordinance (Application to the New Territories) Ordinance (Cap. 121). *(Replaced 60 of 1987 s. 14)*

2. Interpretation

- (1) In this Ordinance, unless the context otherwise requires—

access road (通路) means a road on land held under lease, licence or otherwise from the Government or on land over which the Government has granted a right of way, providing access only to buildings used or intended to be used wholly or mainly for purposes of habitation, and which is not a street; *(Added 44 of 1959 s. 2. Amended 29 of 1998 s. 105)*

Architects Registration Board (建築師註冊管理局) means the Architects Registration Board established by section 4 of the Architects Registration Ordinance (Cap. 408); *(Added 54 of 1996 s. 2)*

authorized person (認可人士) means a person whose name is on the authorized persons' register kept under section 3(1)—

- (a) as an architect;
- (b) as an engineer; or
- (c) as a surveyor; (*Replaced 54 of 1996 s. 2*)

building (建築物) includes the whole, or any part, of any domestic or public building or building which is constructed or adapted for use for public entertainment, arch, bridge, cavern adapted or constructed to be used for the storage of petroleum products, chimney, cook-house, cowshed, dock, factory, garage, hangar, hoarding, latrine, matshed, office, oil storage installation, out-house, pier, shelter, shop, stable, stairs, wall, warehouse, wharf, workshop or tower, sea-wall, breakwater, jetty, mole, quay, cavern or any underground space adapted or constructed for occupation or use for any purpose including its associated access tunnels and access shafts, pylon or other similar structure supporting an aerial ropeway and such other structures as the Building Authority may by notice in the Gazette declare to be a building; (*Amended 44 of 1959 s. 2; 19 of 1976 s. 32; 16 of 1978 s. 2; 5 of 1983 s. 2; 68 of 1993 s. 2; 72 of 1995 s. 15*)

Building Authority (建築事務監督) means the Director of Buildings; (*Amended L.N. 76 of 1982; L.N. 94 of 1986; L.N. 291 of 1993*)

building owner (建築物擁有人) means a person desiring to build a new building or to alter an existing building and shall include the agent of and authorized person appointed by a building owner; (*Amended 91 of 1990 s. 2*)

building works (建築工程) includes any kind of building construction, site formation works, ground investigation in the scheduled areas, foundation works, repairs, demolition, alteration, addition and every kind of building operation, and includes drainage works; (*Amended 72 of 1980 s. 3; 41 of 1982 s. 2; 52 of 1990 s. 2*)

common parts (公用部分) has the meaning given by section 2 of the Building Management Ordinance (Cap. 344); (*Added 16 of 2011 s. 4*)

composite building (綜合用途建築物) means a building that is partly domestic and partly non-domestic; (*Added 73 of 1983 s. 2*)

contraventions of the provisions of this Ordinance (違反本條例的條文) includes—

- (a) failure to comply with any order given, notice served or any condition imposed by the Building Authority under this Ordinance; (*Amended 16 of 2011 s. 4*)
- (b) in the case of building works (other than minor works commenced under the simplified requirements), material divergence or deviation from any plan approved by the Building Authority under this Ordinance;
- (c) in the case of minor works commenced under the simplified requirements, material divergence or deviation from any plan required to be submitted to the Building Authority under the simplified requirements; and
- (d) in the case of minor works commenced under the simplified requirements, failure to submit to the Building Authority any certificate required to be submitted under the simplified requirements; (*Replaced 20 of 2008 s. 3*)

dangerous building (危險建築物) means any building in such a condition as to cause risk of injury either to the occupiers or users of such building or to the occupiers or users of any neighbouring building or to the general public;

design assumption (設計假定) means an assumption stated or implied in the design calculations or other documentation in respect of building works submitted to the Building Authority; (*Added 72 of 1980 s. 3*)

domestic (住用), when used in relation to a part of a composite building, means a part that is constructed or intended for habitation; (*Added 73 of 1983 s. 2*)

domestic building (住用建築物) means a building constructed or intended to be used for habitation and the expression **domestic purposes** (住用用途) shall be construed accordingly; (*Added 73 of 1983 s. 2*)

drain (排水渠) means a drain used for the drainage of one building and any buildings and yards appurtenant thereto; (*Added 44 of 1959 s. 2*)

drainage works (排水工程) means any work connected with the construction, repair, alteration, disconnexion, trapping and ventilation of drains or sewers; (*Added 44 of 1959 s. 2*)

electronic record (電子紀錄) has the same meaning as in section 2(1) of the Electronic Transactions Ordinance (Cap. 553); (*Added 20 of 2008 s. 3*)

emergency vehicular access (緊急車輛通道), in relation to a building, means a vehicular access used or to be used for access of a vehicle of the Fire Services Department to the building in the event of a fire or other emergency; (*Added 15 of 2004 s. 2*)

Engineers Registration Board (工程師註冊管理局) means the Engineers Registration Board established by section 3 of the Engineers Registration Ordinance (Cap. 409); (*Added 54 of 1996 s. 2*)

escalator (自動梯) means an escalator as defined by section 2(1) of the Lifts and Escalators Ordinance (Cap. 618); (*Replaced 8 of 2012 ss. 156 & 160*)

external wall (外牆) means the whole, or any part, of an outer wall of a building even though adjoining a wall of another building and includes a party wall; (*Added 16 of 2011 s. 4*)

frontagers (臨街處所擁有人) means, in the case of a private street the owners of premises fronting, joining or abutting on such street, and in the case of an access road the owners of premises to which such road provides access; (*Added 44 of 1959 s. 2*)

ground investigation (土地勘測) means any exploratory drilling, boring, excavating and probing of land for obtaining any information on ground conditions and includes the installation of instruments, sampling, field testing, any other site operation and laboratory testing of samples obtained from such operations; (*Added 41 of 1982 s. 2*)

groundwater drainage works (地下水排水工程) means any work or installation connected with the draining of water flowing, percolating or lying under the surface of land but does not include drainage works as defined in this section; (*Added 41 of 1982 s. 2*)

habitation (居住) in relation to the use of a building, or part of a building, includes use of it for hotel, guest-house, boarding-house, hostel, dormitory or similar accommodation; (*Added 73 of 1983 s. 2*)

hand-dug caisson (人工挖掘沉箱) means any foundation or earth-retaining structure, or part thereof, the construction of which includes the excavation of a shaft in the ground by means of digging carried out by any person inside the shaft with or without the aid of machine tools; (*Added 6 of 1995 s. 2*)

Land Registry (土地註冊處) means the Land Registry referred to in section 2(1) of the Land Registration Ordinance (Cap. 128); (*Added 55 of 1996 s. 2*)

lift (升降機) means a lift as defined by section 2(1) of the Lifts and Escalators Ordinance (Cap. 618); (*Replaced 8 of 2012 ss. 156 & 160*)

minor works (小型工程) means building works designated in the regulations as minor works for the purposes of this definition; (*Added 20 of 2008 s. 3*)

new building (新建築物) means any building hereafter erected and also any existing building of which not less than one half measured by volume is rebuilt or which is altered to such an extent as to necessitate the reconstruction of not less than one half of the superficial area of the main walls;

non-domestic (非住用), when used in relation to a part of a composite building, means a part that is constructed or intended for use otherwise than for habitation; (*Added 73 of 1983 s. 2*)

non-domestic building (非住用建築物) means a building that is not a domestic building; (*Added 73 of 1983 s. 2*)

occupier (佔用人) means in the case of domestic buildings a person resident therein and in the case of other buildings means a person carrying on an occupation full-time in such building;

oil storage installation (貯油裝置) means any tank having a capacity of not less than 110 000 litres, or a group of tanks any one of which is a tank having a capacity of not less than 110 000 litres, constructed above ground level for the purpose of storing petroleum products; (*Added 16 of 1978 s. 2. Amended 68 of 1993 s. 2*)

owner (擁有人) includes any person holding premises direct from the Government whether under lease, licence or otherwise, any mortgagee in possession and any person receiving the rent of any premises, solely or with another, on his own behalf or that of any person, or who would receive the same if such premises were let to a tenant, and where such owner as above defined cannot be found or ascertained or is absent from Hong Kong or is under disability, the agent of such owner; (*Amended 29 of 1998 s. 105; 62 of 2000 s. 3*)

performance review (表現檢討) means a report in respect of building works, submitted by an authorized person, stating and justifying that the building works have been inspected and monitored in the course of construction and that the geotechnical design assumptions upon which the building works have been based are valid; (*Added 41 of 1982 s. 2*)

petroleum products (石油產品) means crude petroleum or petroleum feed-stock and includes—

(a) semi-refined petroleum; and

(b) wholly refined petroleum,

which is liquid or solid at ambient temperatures and pressures; (*Replaced 68 of 1993 s. 2*)

place of public entertainment (公眾娛樂場所) and **public entertainment** (公眾娛樂) have the same meanings assigned to them, respectively, by the Places of Public Entertainment Ordinance (Cap. 172); (*Added 72 of 1995 s. 15*)

plan (圖則) includes drawings, details, diagrams, calculations, structural details, structural calculations, geotechnical details and geotechnical calculations; (*Added 44 of 1959 s. 2. Amended 15 of 2004 s. 2*)

prescribed building professional (訂明建築專業人士) means an authorized person, a registered structural engineer, a registered geotechnical engineer or a registered inspector; (*Added 20 of 2008 s. 3. Amended 16 of 2011 s. 4*)

prescribed inspection (訂明檢驗) means an examination or assessment of a building as prescribed in the regulations; (*Added 16 of 2011 s. 4*)

prescribed qualification (訂明資格) means the qualification prescribed under this Ordinance or by the respective Registration Ordinance for inclusion in the respective register; (*Added 54 of 1996 s. 2*)

prescribed registered contractor (訂明註冊承建商) means a registered general building contractor, registered specialist contractor or registered minor works contractor; (*Added 20 of 2008 s. 3*)

prescribed repair (訂明修葺) means a repair or testing of a building as prescribed in the regulations; (*Added 16 of 2011 s. 4*)

private street (私家街道) means a street on land held under lease, licence or otherwise from the Government or on land over which the Government has granted a right of way; (*Added 44 of 1959 s. 2. Amended 29 of 1998 s. 105*)

qualified person (合資格人士) means a person whose name is for the time being on any of the following registers—

- (a) authorized persons' register kept under section 3(1);
- (b) structural engineers' register kept under section 3(3);
- (c) inspectors' register kept under section 3(3B);

(d) register of general building contractors kept under section 8A;

(e) register or provisional register of minor works contractors, under the class, type and item of minor works in respect of windows, kept under section 8A,

and who is not subject to any disciplinary order under section 7(2)(bb) or (d) or 13(4)(d) or (e); (*Added 16 of 2011 s. 4*)

register (名冊) means a register maintained under this Ordinance and includes a sub-register; (*Added 54 of 1996 s. 2*)

registered architect (註冊建築師) means a person whose name is on the register of registered architects established and maintained under section 8 of the Architects Registration Ordinance (Cap. 408); (*Added 54 of 1996 s. 2*)

registered general building contractor (註冊一般建築承建商) means a person whose name is for the time being on the register of general building contractors maintained under section 8A; (*Added 54 of 1996 s. 2*)

registered geotechnical engineer (註冊岩土工程師) means a person whose name is for the time being on the geotechnical engineers' register kept under section 3(3A); (*Added 15 of 2004 s. 2*)

registered inspector (註冊檢驗人員) means a person whose name is for the time being on the inspectors' register kept under section 3(3B); (*Added 16 of 2011 s. 4*)

registered minor works contractor (註冊小型工程承建商) means a person whose name is for the time being on the register or provisional register of minor works contractors maintained under section 8A; (*Added 20 of 2008 s. 3*)

registered professional engineer (註冊專業工程師) means a person whose name is on the register of registered professional engineers established and maintained under section 7 of the Engineers Registration Ordinance (Cap. 409); (*Added 54 of 1996 s. 2*)

registered professional surveyor (註冊專業測量師) means a person whose name is on the register of registered professional surveyors established and maintained under section 7 of the Surveyors Registration Ordinance (Cap. 417); (*Added 54 of 1996 s. 2*)

registered specialist contractor (註冊專門承建商) means a person whose name is for the time being on the register of specialist contractors maintained under section 8A; (*Added 54 of 1996 s. 2*)

registered structural engineer (註冊結構工程師) means a person whose name is for the time being on the structural engineers' register kept under section 3(3); (*Added 52 of 1974 s. 2*)

Registration Committee (註冊事務委員會) means an Authorized Persons Registration Committee, a Structural Engineers Registration Committee, a Geotechnical Engineers Registration Committee, an Inspectors Registration Committee or a Contractors Registration Committee, as the case requires; (*Added 54 of 1996 s. 2. Amended 15 of 2004 s. 2; 16 of 2011 s. 4*)

Registration Ordinance (註冊條例) means the Architects Registration Ordinance (Cap. 408), the Engineers Registration Ordinance (Cap. 409) or the Surveyors Registration Ordinance (Cap. 417), as the case may be; (*Added 54 of 1996 s. 2*)

regulations (規例) means rules and regulations made under this Ordinance;

scheduled areas (附表所列地區) means the areas specified in Schedule 5 and references to a building or building works in the scheduled areas are, in the case of a building or building works situated partly in one of the scheduled areas, references to that part of the building or building works so situated; *(Replaced 52 of 1990 s. 2. Amended 16 of 2011 s. 4)*

Secretary (局長) means the Secretary for Development; *(Added 20 of 2008 s. 3)*

sewer (污水渠) does not include a drain as defined in this section, but includes all sewers and drains used for the drainage of more than one building and any buildings and yards appurtenant thereto; *(Added 44 of 1959 s. 2)*

signboard (招牌) means a hoarding, framework, scaffolding or other structure erected solely for the purpose of displaying any advertisement, making any announcement or notification, or displaying any visual image or other information; *(Added 15 of 2004 s. 2)*

simplified requirements (簡化規定) means any requirements prescribed in the regulations as simplified requirements for the purposes of this definition; *(Added 20 of 2008 s. 3)*

site formation works (地盤平整工程) includes excavations on sloping land, filling, landslip preventive works, landslip remedial works and ground water drainage works; *(Added 72 of 1980 s. 3. Amended 41 of 1982 s. 2)*

specialized works (專門工程) means building works or street works designated as specialized works under section 2A; *(Replaced 20 of 2008 s. 3)*

specified (指明), in relation to a form, means specified by the Building Authority under section 22(4); *(Added 68 of 1993 s. 2)*

specified document (指明文件) means—

- (a) a document made, issued or given, or a plan submitted to or approved by the Building Authority, under or for the purposes of this Ordinance or the Buildings Ordinance 1935 (18 of 1935); or
- (b) any part of the document or plan; (*Added 20 of 2008 s. 3*)

specified document record (指明文件紀錄) means—

- (a) a record of a specified document made under section 36C(a);
- (b) an electronic record made under section 36C(b); or
- (c) a copy of an electronic record made under section 36C(c); (*Added 20 of 2008 s. 3*)

street (街道) includes the whole or any part of any square, court or alley, highway, lane, road, road-bridge, footpath, or passage whether a thoroughfare or not;

street works (街道工程) means any work for the construction, formation or laying out of any private street or access road, including the surfacing, channelling, draining and lighting thereof, or for the reconstruction, alteration or repair thereof; (*Added 44 of 1959 s. 2*)

supervision plan (監工計劃書) means a plan setting out the plan of safety management of building works or street works prepared in compliance with the technical memorandum issued under section 39A; (*Added 54 of 1996 s. 2. Amended 15 of 2004 s. 2*)

Surveyors Registration Board (測量師註冊管理局) means the Surveyors Registration Board established by section 3 of the Surveyors Registration Ordinance (Cap. 417); (*Added 54 of 1996 s. 2*)

ventilating system (通風系統) means a mechanical system for introducing or exhausting air; (*Added 23 of 1971 s. 2*)

water pipe (水管) means any water carrying pipe and fittings thereto other than a drain or sewer but does not include any pipe or fitting forming any part of a fire service or inside service within the meaning of the Waterworks Ordinance (Cap. 102) the costs of maintenance of which shall, under section 17(2)(b) of that Ordinance, be borne by the Water Authority. (*Added 55 of 1996 s. 2*)

(*Amended 43 of 1993 s. 2; 54 of 1996 s. 2*)

- (1A) Where this Ordinance refers to a person's certifying minor works commenced under the simplified requirements, it means the certification by the person of anything that is required by the regulations to be certified in respect of such minor works. (*Added 20 of 2008 s. 3*)
- (1B) For the purposes of this Ordinance, minor works that are commenced or carried out without the approval and consent of the Building Authority under section 14(1) are to be regarded as minor works commenced under the simplified requirements if—

- (a) a prescribed building professional or a prescribed registered contractor has been appointed in respect of the works; or
 - (b) the works are commenced or carried out by a prescribed registered contractor. (*Added 20 of 2008 s. 3*)
- (2) The duties imposed on and the powers granted to the Building Authority under this Ordinance may be carried out and exercised by an officer of any Department of the Government specified in Schedule 4 who is authorized by the Director of Buildings either generally or particularly and subject to his instructions. (*Amended L.N. 76 of 1982; 73 of 1985 s. 2; L.N. 94 of 1986; L.N. 291 of 1993; 16 of 2011 s. 4*)
- (3) The Legislative Council may by resolution amend Schedule 4, 5 or 8. (*Added 73 of 1985 s. 2. Amended 6 of 1995 s. 2; 16 of 2011 s. 4; 24 of 2012 s. 3*)
- (4) Any reference in Part 1 or 7 to registration in any register shall be construed as the inclusion, retention, further retention or restoration of a person's name in or to the relevant register, as the case may require. (*Added 77 of 1994 s. 2*)
(*Amended E.R. 1 of 2012*)

2A. Designation of specialized works

- (1) The Building Authority may designate any category of building works or street works as specialized works.
- (2) The Building Authority shall notify in the Gazette a designation under subsection (1).
- (3) The notification in subsection (2) is not subsidiary legislation.
(*Addd 20 of 2008 s. 4*)

Part 1

Authorized Persons, Registered Structural Engineers, Registered Geotechnical Engineers, Registered Inspectors and Registered Contractors

(Part 1 replaced 44 of 1959 s. 3. Amended 52 of 1974 s. 3; 43 of 1987 s. 44; 54 of 1996 s. 3; 15 of 2004 s. 3; 16 of 2011 s. 5)

3. Registers of authorized persons, structural engineers, geotechnical engineers and inspectors

(Amended 16 of 2011 s. 6)

- (1) The Building Authority shall keep a register (hereinafter referred to as the ***authorized persons' register***) of all persons who are qualified to perform the duties and functions of an authorized person in accordance with this Ordinance.
- (2) The authorized persons' register contains—
 - (a) a list of architects;
 - (b) a list of engineers; and
 - (c) a list of surveyors. *(Replaced 54 of 1996 s. 4)*
- (3) The Building Authority shall keep a register (hereinafter referred to as the ***structural engineers' register***) of all persons who are qualified to perform the duties and functions of structural engineers (relating to more advanced structural designs of building works or street works) in accordance with this Ordinance.

- (3A) The Building Authority shall keep a register (hereinafter referred to as the ***geotechnical engineers' register***) of all persons who are qualified to perform the duties and functions of geotechnical engineers (relating to geotechnical designs of building works or street works) in accordance with this Ordinance. (*Added 15 of 2004 s. 4*)
- (3B) The Building Authority must keep a register (the ***inspectors' register***) of all persons who are qualified to perform the duties and functions of inspectors in accordance with this Ordinance. (*Added 16 of 2011 s. 6*)
- (3C) The inspectors' register contains—
- (a) a list of architects;
 - (b) a list of engineers; and
 - (c) a list of surveyors. (*Added 16 of 2011 s. 6*)
- (4) The Building Authority shall publish annually in the Gazette the names of—
- (a) the persons included in each of the lists in the authorized persons' register; (*Amended 15 of 2004 s. 4*)
 - (b) the persons included in the structural engineers' register; (*Amended 15 of 2004 s. 4; 16 of 2011 s. 6*)
 - (c) the persons included in the geotechnical engineers' register; and (*Added 15 of 2004 s. 4. Amended 16 of 2011 s. 6*)
 - (d) the persons included in each of the lists in the inspectors' register. (*Added 16 of 2011 s. 6*)

- (5) The Building Authority is to establish 4 panels with sufficient members from whom he is to appoint committees to be known respectively as Authorized Persons Registration Committees, Structural Engineers Registration Committees, Geotechnical Engineers Registration Committees and Inspectors Registration Committees. The Building Authority may appoint more than one Registration Committee of each type at any one time. *(Replaced 54 of 1996 s. 4. Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*
- (5A) The function of a Registration Committee is to assist the Building Authority in considering applications for inclusion in the relevant register by—
- (a) examining the qualifications of applicants;
 - (b) inquiring as the relevant Registration Committee considers necessary to ascertain whether an applicant has the relevant experience;
 - (c) conducting professional interviews with applicants; and
 - (d) advising the Building Authority to accept, defer or reject applications for inclusion in the relevant register. *(Added 54 of 1996 s. 4)*
- (5B) An Authorized Persons Registration Committee consists of—
- (a) 4 authorized persons nominated by the Architects Registration Board from the list of architects in the authorized persons' register;
 - (b) 2 authorized persons nominated by the Engineers Registration Board from the list of engineers in the authorized persons' register;
 - (c) 1 authorized person nominated by the Surveyors Registration Board from the list of surveyors in the authorized persons' register;

- (d) an Assistant Director of Buildings nominated by the Building Authority; and
 - (e) 1 person selected by the Building Authority from among the persons nominated in accordance with subsection (5E). (*Added 54 of 1996 s. 4*)
- (5C) A Structural Engineers Registration Committee consists of—
 - (a) 3 registered structural engineers nominated by the Engineers Registration Board;
 - (b) 1 authorized person nominated by the Architects Registration Board from the list of architects in the authorized persons' register;
 - (c) 1 authorized person nominated by the Surveyors Registration Board from the list of surveyors in the authorized persons' register;
 - (d) an Assistant Director of Buildings nominated by the Building Authority; and
 - (e) 1 person selected by the Building Authority from among the persons nominated in accordance with subsection (5E). (*Added 54 of 1996 s. 4*)
- (5CA) A Geotechnical Engineers Registration Committee consists of—
 - (a) 3 registered geotechnical engineers nominated by the Engineers Registration Board;
 - (b) 1 authorized person nominated by the Architects Registration Board from the list of architects in the authorized persons' register;
 - (c) 1 authorized person nominated by the Surveyors Registration Board from the list of surveyors in the authorized persons' register;

- (d) 1 registered structural engineer nominated by the Engineers Registration Board;
 - (e) 1 person nominated by the Building Authority as his representative;
 - (f) 1 public officer of the rank of Government Geotechnical Engineer nominated by the Director of Civil Engineering and Development; and
 - (g) 1 person selected by the Building Authority from among the persons nominated in accordance with subsection (5E). *(Replaced 20 of 2008 s.5)*
- (5CB) An Inspectors Registration Committee consists of—
- (a) 1 registered inspector nominated by the Architects Registration Board from the list of architects in the inspectors' register;
 - (b) 1 registered inspector nominated by the Engineers Registration Board from the list of engineers in the inspectors' register;
 - (c) 1 registered inspector nominated by the Surveyors Registration Board from the list of surveyors in the inspectors' register;
 - (d) 1 person nominated by the Building Authority as the Building Authority's representative; and
 - (e) 1 person selected by the Building Authority from among the persons nominated in accordance with subsection (5E). *(Added 16 of 2011 s. 6)*
- (5D) The Building Authority is to appoint an officer of the Buildings Department as the secretary of each Registration Committee, who is not a member of either Registration Committee and may not cast a vote. *(Added 54 of 1996 s. 4)*

- (5E) For the purpose of subsections (5B), (5C), (5CA) and (5CB), the Building Authority is to invite such bodies as the Building Authority may think fit to nominate persons for the Building Authority to consider for appointment to each of the respective Registration Committees. *(Added 54 of 1996 s. 4. Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*
- (5F) A person appointed to be a member of the Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel under section 5A must not be a member of a Registration Committee (other than an Inspectors Registration Committee). *(Added 54 of 1996 s. 4. Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*
- (5FA) A person appointed to be a member of the Registered Inspectors' Disciplinary Board Panel under section 5A must not be a member of an Inspectors Registration Committee. *(Added 16 of 2011 s. 6)*
- (5G) The quorum for a meeting of a Registration Committee (other than a Geotechnical Engineers Registration Committee or an Inspectors Registration Committee) is— *(Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*
- (a) the Chairman of the committee;
 - (b) the Assistant Director of Buildings nominated under subsection (5B)(d) or (5C)(d); and
 - (c) 3 other members for an Authorized Persons Registration Committee and 2 other members for a Structural Engineers Registration Committee. *(Added 54 of 1996 s. 4)*
- (5GA) The quorum for a meeting of a Geotechnical Engineers Registration Committee is—
- (a) the Chairman of the committee;

- (b) the Building Authority's representative under subsection (5CA)(e); *(Amended 20 of 2008 s. 5)*
 - (c) the public officer nominated under subsection (5CA)(f); and *(Amended 20 of 2008 s. 5)*
 - (d) 2 other members. *(Added 15 of 2004 s. 4)*
- (5GB) The quorum for a meeting of an Inspectors Registration Committee is—
- (a) the Chairman of the committee;
 - (b) the Building Authority's representative under subsection (5CB)(d); and
 - (c) 1 other member. *(Added 16 of 2011 s. 6)*
- (5H) At least one member of the Registration Committee (other than an Inspectors Registration Committee) at a meeting hearing an application for inclusion in a register must be— *(Amended 16 of 2011 s. 6)*
- (a) for an Authorized Persons Registration Committee, on the same list in the authorized persons' register as that on which the applicant wishes to be included; *(Amended 15 of 2004 s. 4)*
 - (b) for a Structural Engineers Registration Committee, a registered structural engineer; and *(Added 54 of 1996 s. 4. Amended 15 of 2004 s. 4; 20 of 2008 s. 5)*
 - (c) for a Geotechnical Engineers Registration Committee under subsection (5CA)(a), a registered professional engineer nominated under that subsection. *(Added 15 of 2004 s. 4. Amended 20 of 2008 s. 5)*
 - (d) *(Repealed 20 of 2008 s. 5)*
- (5I) The Chairman of a Registration Committee is elected by its members. *(Added 54 of 1996 s. 4)*

- (5J) A Registration Committee is required to meet as often as the Building Authority directs. *(Added 54 of 1996 s. 4)*
- (6) Every applicant for inclusion in the authorized persons' register, the structural engineers' register, the geotechnical engineers' register or the inspectors' register shall submit his application in the specified form to the secretary of the respective Registration Committee. *(Amended 68 of 1993 s. 3; 15 of 2004 s. 4; 16 of 2011 s. 6)*
- (6A) An applicant under subsection (6)—
- (a) *(Repealed 15 of 2004 s. 4)*
 - (b) shall pay—
 - (i) upon submission of the application, the non-refundable prescribed fee for processing of the application;
 - (ii) upon the application being granted, the respective prescribed fees for inclusion and retention of his name in the appropriate register. *(Replaced 39 of 2000 s. 2)*
- (7) A person must not be included in a register unless—
- (a) he has obtained the prescribed qualifications; and
 - (b) subject to subsection (7AA), he is recommended by the respective Registration Committee for inclusion. *(Replaced 54 of 1996 s. 4. Amended 16 of 2011 s. 6)*
- (7AA) A person may be included in the inspectors' register without recommendation by an Inspectors Registration Committee if the person is—
- (a) an authorized person or a registered structural engineer with relevant experience as prescribed in the regulations; or

- (b) within the period of 12 months beginning on the commencement* of section 6 of the Buildings (Amendment) Ordinance 2011 (16 of 2011)—
 - (i) a registered architect nominated by the Architects Registration Board with not less than 5 years of experience in building design, construction, repair and maintenance before the nomination;
 - (ii) a registered professional engineer nominated by the Engineers Registration Board with not less than 5 years of experience in building design, construction, repair and maintenance before the nomination; or
 - (iii) a registered professional surveyor nominated by the Surveyors Registration Board with not less than 5 years of experience in building design, construction, repair and maintenance before the nomination. (*Added 16 of 2011 s. 6*)
- (7A) If an applicant for inclusion in a register fails to satisfy subsection (7), the Building Authority shall refuse the application. (*Added 54 of 1996 s. 4*)
- (7B) If an applicant for inclusion in a register satisfies subsection (7), the Building Authority shall grant the application unless for other reasons he thinks fit to refuse the application. (*Added 54 of 1996 s. 4*)
- (7C) The Building Authority shall give reasons in writing to—
 - (a) the applicant for the refusal of an application for inclusion in a register;
 - (b) the respective Registration Committee for the refusal of an application for inclusion in a register,and the reasons must refer to the requirements of subsections (7) and (7B). (*Added 54 of 1996 s. 4*)

- (7D) In subsections (7), (7A), (7B) and (7C), **register** (名冊) means the authorized persons' register kept under subsection (1), the structural engineers' register kept under subsection (3), the geotechnical engineers' register kept under subsection (3A) or the inspectors' register kept under subsection (3B), as the case requires. *(Replaced 16 of 2011 s. 6)*
- (8) Subject to subsection (7), a person's name may be included in more than one of the following registers— *(Amended 15 of 2004 s. 4)*
- (a) the authorized persons' register;
 - (b) the structural engineers' register;
 - (c) the geotechnical engineers' register; and
 - (d) the inspectors' register, *(Added 16 of 2011 s. 6)*
- and in more than one list in the authorized persons' register or the inspectors' register. *(Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*
- (9) In respect of every application for inclusion in any list in the authorized persons' register, in the structural engineers' register, in the geotechnical engineers' register or in any list in the inspectors' register (except for an application made by a person mentioned in subsection (7AA)), the Building Authority shall within 3 months from the date of the meeting of the respective Registration Committee at which the application was considered— *(Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*
- (a) on payment by the applicant of the prescribed fees mentioned in subsection (6A)(b)(ii), publish in the Gazette and enter in the appropriate list or, as the case may be, register the name of that applicant; or *(Replaced 39 of 2000 s. 2)*

- (b) inform the applicant that his application is deferred for a period not exceeding 12 months; or
 - (c) refuse his application.
 - (9AA) For an application made by a person mentioned in subsection (7AA) for inclusion in any list in the inspectors' register, the Building Authority must within 1 month after the date of receiving the application—
 - (a) on payment by the applicant of the prescribed fees mentioned in subsection (6A)(b)(ii), publish in the Gazette and enter in the appropriate list the name of that applicant; or
 - (b) refuse the application. (*Added 16 of 2011 s. 6*)
 - (9A) An application that has been deferred under subsection (9)(b) shall, when it comes up for consideration again—
 - (a) be accepted, so that the applicant is included in the appropriate list or registered, as the case may be, upon payment of the prescribed fee; or
 - (b) be refused. (*Added 57 of 1987 s. 3*)
 - (9B) A person—
 - (a) whose name is included or retained in or restored to the authorized persons' register, the structural engineers' register, the geotechnical engineers' register or the inspectors' register, under this section, (*Amended 16 of 2011 s. 6*)
 - (b) (*Repealed 15 of 2004 s. 4*)
- may apply to the Building Authority, in accordance with subsection (9C), for the further retention or retention, as may be appropriate, of his name in the register for a period of 5 years. (*Added 77 of 1994 s. 3. Amended 15 of 2004 s. 4*)

- (9C) An application under subsection (9B) shall be—
- (a) in the specified form;
 - (b) made so as to be received by the Building Authority not earlier than 4 months and not later than 28 days prior to the date of the expiry of the relevant registration; *(Replaced 54 of 1996 s. 4. Amended 20 of 2008 s. 5)*
 - (c) accompanied by the appropriate prescribed fee; and *(Added 77 of 1994 s. 3. Amended 20 of 2008 s. 5)*
 - (d) accompanied by a copy of a valid certificate of registration or of renewal of registration issued under the respective Registration Ordinance. *(Added 54 of 1996 s. 4)*
- (9D) The Building Authority shall refuse an application under subsection (9B) unless the applicant holds the prescribed qualifications for registration as an authorized person, a registered structural engineer, a registered geotechnical engineer or a registered inspector. *(Added 54 of 1996 s. 4. Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*
- (9E) The registration of an authorized person, structural engineer, geotechnical engineer or inspector will continue to be in force if he makes an application for retention within the time limit and pays the retention fee until his application for retention is finalised by the Building Authority, subject to any decision of the relevant Disciplinary Board. *(Added 54 of 1996 s. 4. Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*
- (10) *(Repealed 15 of 2004 s. 4)*
- (11) The Building Authority may remove from the authorized persons' register, the structural engineers' register, the geotechnical engineers' register or the inspectors' register, after sending by post notice of his intention to the last known address of the person, the name of any person who— *(Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*

- (a) is deceased; or (*Amended 77 of 1994 s. 3*)
 - (b) is not practising the profession in respect of which the name of that person was included in the register. (*Replaced 75 of 1976 s. 2. Amended 77 of 1994 s. 3*)
 - (c) (*Repealed 77 of 1994 s. 3*)
- (11A) Subject to subsection (11AA), the Building Authority shall remove the name of a person from the authorized persons' register, the structural engineers' register, the geotechnical engineers' register or the inspectors' register if the Building Authority— (*Amended 16 of 2011 s. 6*)
 - (a) does not receive an application made by the person in accordance with subsection (9C); or
 - (b) has refused an application made by the person under subsection (9D) and sent a notice by registered post to his last known address notifying him of the refusal. (*Replaced 20 of 2008 s. 5*)
- (11AA) The removal of a name under subsection (11A)(a) becomes effective immediately after the date of expiry of the existing registration. (*Added 20 of 2008 s. 5*)
- (11AB) A notice under subsection (11A)(b) shall specify the effective date of removal, which shall not be earlier than the date of expiry of the existing registration. (*Added 20 of 2008 s. 5*)
- (11B) The Building Authority shall remove a name included or retained in or restored to the authorized persons' register, the structural engineers' register, the geotechnical engineers' register or the inspectors' register under this section if the Building Authority receives notice that an authorized person, a registered structural engineer, a registered geotechnical engineer or a registered inspector has ceased to hold the prescribed qualifications by virtue of which he was registered. (*Added 54 of 1996 s. 4. Amended 15 of 2004 s. 4; 16 of 2011 s. 6*)

- (11C) The Building Authority shall give notice of the removal of a name from a register under subsection (11B), by prepaid registered post to the person's last known address. *(Added 54 of 1996 s. 4)*
- (12) A person whose name is removed under subsection (11A), (11B) or (11C) may, within 2 years beginning on the date the relevant registration expires, apply for the restoration of his name to the relevant register. *(Replaced 77 of 1994 s. 3)*
- (13) An application under subsection (12) shall—
- (a) be in the specified form;
 - (b) *(Repealed 54 of 1996 s. 4)*
 - (c) be accompanied by the prescribed fee for such restoration and the prescribed fee for retention of registration for 5 years; and *(Added 77 of 1994 s. 3. Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*
 - (d) be accompanied by a copy of a valid certificate of registration or of renewal of registration issued under the respective Registration Ordinance. *(Added 54 of 1996 s. 4)*
- (13A) The Building Authority shall refuse an application under subsection (12) unless the applicant holds the prescribed qualifications for registration as an authorized person, a registered structural engineer, a registered geotechnical engineer or a registered inspector. *(Added 54 of 1996 s. 4. Amended 15 of 2004 s. 4; 16 of 2011 s. 6)*

- (14) Where the Building Authority allows an application made under subsection (6), (9B) or (12) he shall—
- (a) issue to the applicant as regards the relevant registration a certificate of registration, which shall be in effect until the expiry of that registration; and
 - (b) in the case of an application under subsection (12), restore the name of the applicant to the relevant register. *(Added 77 of 1994 s. 3)*
- (15) A registration under this section shall—
- (a) be effective, in the case of—
 - (i) an inclusion in or restoration to a register of a person's name, from the date of such inclusion or restoration; and
 - (ii) a retention or further retention of a person's name in a register, from the date of the expiry of the previous registration; and
 - (b) expire, unless the person's name is removed from the relevant register by order of a disciplinary board, at the expiry of 5 years from the effective date of registration calculated in accordance with paragraph (a). *(Replaced 54 of 1996 s. 4. Amended 15 of 2004 s. 4)*
- (16) The Building Authority is required to give reasons in writing for a decision not to include, retain or restore a person's name in a register at the time of giving notice of the refusal. *(Added 54 of 1996 s. 4)*

- (17) The Building Authority shall make available the information specified in subsection (18) for public inspection at any reasonable time to facilitate any member of the public to ascertain—
- (a) whether he is, in relation to any matter connected with any activity under this Ordinance, dealing with a person registered under this section; and
 - (b) the particulars of a person so registered. (*Added 20 of 2008 s. 5*)
- (18) The information specified for the purposes of subsection (17) is the name, the registration number and the expiry date of the registration of any person registered under this section. (*Added 20 of 2008 s. 5*)
- (Replaced 52 of 1974 s. 4. Amended 54 of 1996 s. 4)*

Editorial Note:

* Commencement date: 30 December 2011.

4. Appointment and duties of authorized person, registered structural engineer or registered geotechnical engineer

- (1) Subject to subsection (1A), every person for whom building works or street works are to be carried out shall appoint— (*Amended 20 of 2008 s. 6*)
- (a) an authorized person as the co-ordinator of such building works or street works; (*Amended 15 of 2004 s. 5*)
 - (b) a registered structural engineer for the structural elements of such building works or street works if so required under this Ordinance; and (*Amended 54 of 1996 s. 5; 15 of 2004 s. 5*)
 - (c) a registered geotechnical engineer for the geotechnical elements of such building works or street works if so required under this Ordinance. (*Added 15 of 2004 s. 5*)

- (1A) Subsection (1) does not apply in respect of minor works commenced under the simplified requirements. (*Added 20 of 2008 s. 6*)
- (2) If an authorized person, a registered structural engineer or a registered geotechnical engineer so appointed becomes unwilling to act or unable, whether by reason of the termination of his appointment or for any other reason, to act, the person for whom the building works or street works are to be or are being carried out shall appoint another authorized person, registered structural engineer or registered geotechnical engineer, as the case may be, in his stead:
- Provided that, where an authorized person, a registered structural engineer or a registered geotechnical engineer, is temporarily unable to act by reason of his illness or absence from Hong Kong, he may nominate another authorized person, registered structural engineer or registered geotechnical engineer to act in his stead for the period of such illness or absence. (*Amended 15 of 2004 s. 5*)
- (3) Any authorized person, any registered structural engineer and any registered geotechnical engineer appointed or nominated under subsection (1) or (2) shall— (*Amended 15 of 2004 s. 5*)
- (a) supervise the carrying out of the building works or street works, as the case may be, in accordance with the supervision plan; (*Amended 54 of 1996 s. 5*)
 - (b) notify the Building Authority of any contravention of the regulations which would result from the carrying out of any work shown in any plan approved by the Building Authority in respect of the building works or street works; and
 - (c) comply generally with this Ordinance.

- (4) A structural engineer may not be appointed under subsection (1)(b) unless he is registered in the structural engineers' register. (*Amended 54 of 1996 s. 5*)
 - (5) A geotechnical engineer may not be appointed under subsection (1)(c) unless he is registered in the geotechnical engineers' register. (*Added 15 of 2004 s. 5*)
- (Replaced 52 of 1974 s. 4)*

4A. Appointment of prescribed building professionals: minor works commenced or carried out without approval and consent

- (1) This section applies to minor works—
 - (a) that are commenced or carried out without the approval and consent of the Building Authority under section 14(1); and
 - (b) in respect of which one or more prescribed building professionals are required to be appointed by the regulations.
- (2) If minor works to which this section applies have been commenced or carried out and the person who arranged for the works to be commenced or carried out has knowingly failed to appoint the prescribed building professional or the prescribed building professionals (as the case may be) required by the regulations to be appointed in respect of the minor works concerned, that person commits an offence.
- (3) For the purposes of subsection (2), a person who has appointed another person to arrange for the commencement or carrying out of minor works is not to be regarded as a person who arranged for the commencement or carrying out of minor works.
- (4) Subject to subsection (5), if a prescribed building professional appointed in respect of the minor works to which this section applies is unable to act, whether by reason of the termination

of his appointment or for any other reason, or is unwilling to act, a person other than a prescribed building professional required by the regulations to be appointed in respect of the minor works concerned shall not be appointed in his place.

- (5) Where a prescribed building professional appointed in respect of the minor works to which this section applies is temporarily unable to act by reason of his illness or absence from Hong Kong, that prescribed building professional may nominate another prescribed building professional required by the regulations to be appointed in respect of the minor works concerned to act in his place for the period of such illness or absence.

(Added 20 of 2008 s. 7)

4B. Duties of prescribed building professional appointed or nominated in respect of minor works commenced under simplified requirements

- (1) A prescribed building professional appointed or nominated in respect of minor works commenced under the simplified requirements shall, in relation to the works, comply with the simplified requirements.
- (2) Without affecting the generality of subsection (1), the prescribed building professional shall also—
- (a) supervise in accordance with the supervision plan the carrying out of minor works commenced under the simplified requirements;
 - (b) supervise in the manner prescribed in the simplified requirements the carrying out of minor works commenced under the simplified requirements;
 - (c) notify the Building Authority of any contravention of the regulations which would result from the carrying out of any works shown in the plan required to be submitted

to the Building Authority in respect of minor works commenced under the simplified requirements;

- (d) ensure that—
 - (i) fire service installations or equipment in relation to minor works commenced under the simplified requirements are provided in accordance with the Code of Practice referred to in section 16(1)(b)(ii); and
 - (ii) the carrying out of minor works commenced under the simplified requirements does not result in the relevant minimum requirements under the Code not being complied with in respect of the fire service installations or equipment;
- (e) ensure that the carrying out of minor works commenced under the simplified requirements would not contravene—
 - (i) any enactment; and
 - (ii) any approved plan or partly approved plan under the Town Planning Ordinance (Cap. 131) or any draft plan prepared under that Ordinance; (*Replaced 25 of 2023 s. 106*)
- (f) if minor works commenced under the simplified requirements are carried out within a comprehensive development area of an approved plan or partly approved plan under the Town Planning Ordinance (Cap. 131) or a draft plan prepared under that Ordinance, ensure that the carrying out of the works would not contravene the master lay-out plan approved by the Town Planning Board under section 4A(2) of that Ordinance; and (*Amended 25 of 2023 s. 106*)
- (g) comply generally with this Ordinance.

(Added 20 of 2008 s. 7)

5. Appointment and powers of disciplinary board

- (1) For the purposes of section 7, the Secretary may, from time to time, appoint a disciplinary board. *(Amended 77 of 1994 s. 4; 36 of 1997 s. 2; L.N. 330 of 1999; L.N. 106 of 2002; L.N. 130 of 2007; 20 of 2008 s. 8)*
- (2) Every disciplinary board to conduct a hearing of disciplinary proceedings against an authorized person, a registered structural engineer or a registered geotechnical engineer consists of— *(Amended 16 of 2011 s. 7)*
 - (a) 4 persons who are members of the Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel appointed under section 5A, at least 1 of whom is on the same register and, in the case of the authorized persons' register, on the same list of the register as the person about whom the inquiry is being held; and *(Replaced 54 of 1996 s. 6. Amended 36 of 1997 s. 2; 15 of 2004 s. 6)*
 - (b) 1 person selected from among the persons nominated in accordance with subsection (3A). *(Replaced 36 of 1997 s. 2)*
 - (c) *(Repealed 54 of 1996 s. 6)*
- (2AA) Every disciplinary board to conduct a hearing of disciplinary proceedings against a registered inspector consists of—
 - (a) 4 persons who are members of the Registered Inspectors' Disciplinary Board Panel appointed under section 5A, of whom at least—
 - (i) 1 is a person mentioned in section 5A(2A)(a);
 - (ii) 1 is a person mentioned in section 5A(2A)(b);
 - (iii) 1 is a person mentioned in section 5A(2A)(c); and

- (b) 1 person selected from among the persons nominated in accordance with subsection (3A). *(Added 16 of 2011 s. 7)*
- (2A) The chairman of a disciplinary board shall appoint a legal adviser to assist in the conduct of the hearing of the disciplinary proceedings and to advise the disciplinary board on points of law that arise during the hearing. The disciplinary board may confer with the legal adviser after the conclusion of the hearing and before it hands down its decision but only after giving the person who is the subject of the hearing and his legal representative, if any, the right to be present while the legal adviser gives advice to the disciplinary board and the right to comment on the matters raised by the legal adviser to the disciplinary board. *(Added 54 of 1996 s. 6)*
- (2B) An authorized person, a registered structural engineer, a registered geotechnical engineer or a registered inspector, against whom disciplinary proceedings are taken, is entitled to be represented by a legal practitioner at disciplinary proceedings. *(Added 54 of 1996 s. 6. Amended 15 of 2004 s. 6; 16 of 2011 s. 7)*
- (3) The chairman of a disciplinary board appointed under this section shall be elected from the members of the board by its members. *(Amended 36 of 1997 s. 2)*
- (3A) For the purpose of subsections (2)(b) and (2AA)(b), the Building Authority is to invite such bodies as the Building Authority may think fit to nominate persons for the Secretary to consider for appointment to the disciplinary board. *(Added 36 of 1997 s. 2. Amended L.N. 330 of 1999; L.N. 106 of 2002; L.N. 130 of 2007; 20 of 2008 s. 8; 16 of 2011 s. 7)*
- (4) For the purposes of any inquiry under section 7, a disciplinary board appointed under this section shall have all such powers as are vested in the Court of First Instance in relation to— *(Amended 25 of 1998 s. 2)*

- (a) enforcing the attendance of witnesses and examining them upon oath or otherwise;
 - (b) compelling the production of documents;
 - (c) ordering the inspection of premises; and
 - (d) entering upon and viewing premises.
- (5) The members of any disciplinary board appointed under this section, other than persons who are in full-time employment in any office of emolument under the Government, shall be remunerated at such rate as the Chief Executive may determine from time to time or in any particular case.
(Amended 62 of 2000 s. 3)

(Replaced 52 of 1974 s. 4)

(Format changes—E.R. 2 of 2012)

5A. Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel and Registered Inspectors' Disciplinary Board Panel

(Amended 16 of 2011 s. 8)

- (1) There shall be an Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel and a Registered Inspectors' Disciplinary Board Panel, both of which shall be appointed by the Chief Executive. *(Amended 62 of 2000 s. 3; 15 of 2004 s. 7; 16 of 2011 s. 8)*
- (2) The Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel consists of not more than 25 members, of whom not less than 1 and not more than— *(Amended 15 of 2004 s. 7)*
- (a) 5 are authorized persons in the list of architects;
 - (b) 5 are authorized persons in the list of engineers;

- (c) 5 are authorized persons in the list of surveyors; *(Amended 15 of 2004 s. 7)*
 - (d) 5 are registered structural engineers; and *(Replaced 54 of 1996 s. 7. Amended 15 of 2004 s. 7)*
 - (e) 5 are registered geotechnical engineers. *(Added 15 of 2004 s. 7)*
- (2A) The Registered Inspectors' Disciplinary Board Panel consists of not more than 15 members, of whom not less than 1 and not more than—
- (a) 5 are registered inspectors in the list of architects;
 - (b) 5 are registered inspectors in the list of engineers; and
 - (c) 5 are registered inspectors in the list of surveyors. *(Added 16 of 2011 s. 8)*
- (2B) For the purpose of subsections (2) and (2A), each member of the relevant Panel may only take up one seat of membership in the Panel even if the member's name is included in more than one of the lists or registers mentioned in those subsections. *(Added 16 of 2011 s. 8)*
- (3) A person must not be appointed to be a member of the Panel referred to in subsection (2) or (2A) unless he has been recommended for the appointment by the Building Authority after consultation with the Architects Registration Board, the Engineers Registration Board or the Surveyors Registration Board respectively, as appropriate. *(Replaced 54 of 1996 s. 7. Amended 16 of 2011 s. 8)*
- (4) Members of the panel shall hold office for 3 years but shall be eligible for reappointment.

(Added 52 of 1974 s. 4)

(Format changes—E.R. 2 of 2012)

5AA. Secretary to the disciplinary board

- (1) There shall be a secretary to the disciplinary board for the purpose of providing administrative services to a disciplinary board appointed under section 5.
- (2) The secretary to the disciplinary board shall be— *(Amended 16 of 2011 s. 9)*
 - (a) appointed by the Secretary; *(Amended L.N. 330 of 1999; L.N. 106 of 2002; L.N. 130 of 2007)*
 - (b) a public officer; and
 - (c) a person who is not a member of the disciplinary board appointed under section 5.

(Added 36 of 1997 s. 3. Amended 16 of 2011 s. 9)

6. *(Repealed 77 of 1994 s. 5)*

7. **Disciplinary proceedings for authorized person, registered structural engineer, registered geotechnical engineer or registered inspector**

(Amended 16 of 2011 s. 10)

- (1) The Building Authority may bring to the notice of a disciplinary board appointed under section 5 the matters set out in subsection (1A) in relation to an authorized person, a registered structural engineer, a registered geotechnical engineer or a registered inspector if the conduct referred to the disciplinary board may— *(Amended 15 of 2004 s. 8; 16 of 2011 s. 10)*
 - (a) render the person unfit to remain on the relevant register;
 - (b) make further inclusion of the person on the relevant register prejudicial to the due administration of this Ordinance; *(Amended 20 of 2008 s. 9)*

- (ba) render the person unfit for certifying any minor works commenced or to be commenced under the simplified requirements; *(Added 20 of 2008 s. 9)*
- (bb) make further certification of minor works commenced or to be commenced under the simplified requirements by him prejudicial to the due administration of this Ordinance; *(Added 20 of 2008 s. 9; 16 of 2011 s. 10)*
- (bc) render the person unfit for certifying any prescribed inspection, or certifying or supervising any prescribed repair; *(Added 16 of 2011 s. 10)*
- (bd) make further certification of any prescribed inspection, or certification or supervision of any prescribed repair, by that person prejudicial to the due administration of this Ordinance; *(Added 16 of 2011 s. 10)*
- (be) render the person deserving of suspension from certifying any prescribed inspection, or certifying or supervising any prescribed repair; or *(Added 16 of 2011 s. 10)*
- (c) render the person deserving of suspension from the relevant register, a fine or a reprimand. *(Replaced 54 of 1996 s. 8. Amended 16 of 2011 s. 10)*
- (1A) The matters referred to in subsection (1) are that the person—
 - (a) has been convicted by any court of an offence related to carrying out his professional duties;
 - (b) has been negligent or has misconducted himself in a professional way;
 - (c) has permitted a material deviation from a supervision plan for which he is responsible without reasonable cause;
 - (d) has drawn up a supervision plan that does not comply with the material requirements of this Ordinance;

- (e) has repeatedly drawn up supervision plans that do not comply with the requirements of this Ordinance; (*Added 54 of 1996 s. 8. Amended 20 of 2008 s. 9*)
 - (f) has certified minor works commenced under the simplified requirements that have been carried out in contravention of this Ordinance; (*Added 20 of 2008 s. 9*)
 - (g) has supervised minor works commenced under the simplified requirements that have been carried out in such a manner that they have caused injury to a person (whether or not while under such supervision); (*Added 20 of 2008 s. 9*)
 - (h) has certified building works (other than minor works) as if it were minor works commenced under the simplified requirements; (*Added 20 of 2008 s. 9*)
 - (i) has supervised building works (other than minor works) as if it were minor works commenced under the simplified requirements; (*Added 20 of 2008 s. 9. Amended 16 of 2011 s. 10*)
 - (j) has not carried out his duties under section 4B(2)(d), (e) or (f) in respect of minor works commenced under the simplified requirements; (*Added 20 of 2008 s. 9. Amended 16 of 2011 s. 10*)
 - (k) has failed to discharge the duties, or abide by the requirements, imposed on a registered inspector under this Ordinance; or (*Added 16 of 2011 s. 10*)
 - (l) has failed to discharge the duties, or abide by the requirements, imposed on a qualified person under this Ordinance. (*Added 16 of 2011 s. 10*)
- (2) Where, after due inquiry, the disciplinary board is satisfied that the authorized person, the registered structural engineer, the registered geotechnical engineer or the registered inspector has been convicted as described in subsection (1A)(a) or

done an act described in subsection (1A)(b), (c), (d), (e), (f), (g), (h) or (i) or has not carried out the duties mentioned in subsection (1A)(j) in respect of minor works commenced or to be commenced under the simplified requirements, or has failed to discharge the duties or abide by the requirements mentioned in subsection (1A)(k) or (l), the disciplinary board may— (*Amended 54 of 1996 s. 8; 15 of 2004 s. 8; 20 of 2008 s. 9; 16 of 2011 s. 10*)

(a) order that the name of such person be removed—

- (i) from the authorized persons', structural engineers' or geotechnical engineers' register, as the case may be; or
- (ii) if his name appears in more than one such register, from those registers,

either permanently or for such period as the board thinks fit; (*Amended 16 of 2011 s. 10*)

(aa) order that the name of the person be removed from the inspectors' register, either permanently or for any period that the board thinks fit; (*Added 16 of 2011 s. 10*)

(b) order that such person be reprimanded; (*Amended 15 of 2004 s. 8; 20 of 2008 s. 9*)

(ba) order that the person be fined— (*Amended 16 of 2011 s. 10*)

- (i) in the case of a prescribed inspection (other than a prescribed inspection in respect of a window in a building) or building works (other than minor works), a sum not exceeding \$250,000; or
- (ii) in the case of a prescribed inspection in respect of a window in a building or minor works, a sum not exceeding \$150,000; (*Replaced 20 of 2008 s. 9. Amended 16 of 2011 s. 10*)

- (bb) order that the person be prohibited from certifying any minor works commenced or to be commenced under the simplified requirements, either permanently or for such period as the disciplinary board thinks fit; or *(Added 20 of 2008 s. 9. Amended 16 of 2011 s. 10)*
 - (c) *(Repealed 15 of 2004 s. 8)*
 - (d) order that the person be prohibited from certifying any prescribed inspection, or certifying or supervising any prescribed repair, in respect of a window in a building, either permanently or for any period that the disciplinary board thinks fit. *(Added 16 of 2011 s. 10)*
- (2A) Where the disciplinary board makes an order under subsection (2), it shall order that its findings and order be published in the Gazette. *(Added 15 of 2004 s. 8)*
- (3) On an inquiry under this section, a disciplinary board may make such order as it thinks fit with regard to the payment of the costs of the inquiry and the costs of the Building Authority or of the authorized person, registered structural engineer, registered geotechnical engineer or registered inspector in respect of whom the inquiry is held. *(Amended 16 of 2011 s. 10)*
- (3A) The amount referred to in subsection (2)(ba) and any costs of inquiry ordered to be paid under subsection (3) are recoverable as a debt due to the Government. *(Added 20 of 2008 s. 9)*
- (4) (a) Any authorized person, registered structural engineer, registered geotechnical engineer or registered inspector aggrieved by any order made in respect of him under this section may appeal to a judge of the Court of First Instance and upon any such appeal the judge may confirm, reverse or vary the order of the disciplinary

board. (*Amended 54 of 1996 s. 8; 25 of 1998 s. 2; 16 of 2011 s. 10*)

- (b) The practice in relation to any such appeal shall be subject to any rules of court made under the High Court Ordinance (Cap. 4). (*Amended 25 of 1998 s. 2*)

- (c) (*Repealed 16 of 2011 s. 10*)

(*Replaced 52 of 1974 s. 6. Amended 15 of 2004 s. 8; 16 of 2011 s. 10*)

(*Format changes—E.R. 2 of 2012*)

8. Contractors Registration Committee

- (1) The Building Authority is to establish a panel with sufficient members from whom he is to appoint committees to be known as Contractors Registration Committees. The Building Authority may appoint more than one Registration Committee at any one time.
- (2) The function of a Contractors Registration Committee is to assist the Building Authority in considering applications for inclusion in a register by—
- (a) examining the qualifications of applicants;
 - (b) inquiring as the relevant Registration Committee considers necessary to ascertain whether an applicant has the relevant experience;
 - (c) conducting interviews with applicants; and
 - (d) advising the Building Authority to accept, defer or reject applications for inclusion in the relevant register.
- (3) In relation to a Contractors Registration Committee appointed to assist the Building Authority in considering applications for inclusion in a register of general building contractors kept under section 8A(1)(a), the Contractors Registration Committee consists of— (*Amended 15 of 2004 s. 9*)

- (a) the Building Authority's representative;
 - (b) 3 persons, 1 of whom is nominated by each of the Architects Registration Board, the Engineers Registration Board and the Surveyors Registration Board from the lists of authorized persons, registered structural engineers and registered geotechnical engineers;
(Amended 15 of 2004 s. 9)
 - (c) 3 persons nominated by The Hong Kong Construction Association Ltd.;
 - (d) 1 person nominated by The Hong Kong E & M Contractors' Association Limited;
 - (e) 1 person selected by the Building Authority from among persons nominated by such bodies as the Building Authority may think fit.
- (3A) In relation to a Contractors Registration Committee appointed to assist the Building Authority in considering applications for inclusion in a register of specialist contractors kept under section 8A(1)(b), the Contractors Registration Committee consists of—
- (a) the Building Authority's representative;
 - (b) 3 persons, 1 of whom is nominated by each of the Architects Registration Board, the Engineers Registration Board and the Surveyors Registration Board from the lists of authorized persons, registered structural engineers and registered geotechnical engineers;
 - (c) 3 persons nominated by The Hong Kong Construction Association Ltd.; and
 - (d) 2 persons selected by the Building Authority from among persons nominated by such bodies as the Building Authority may think fit. *(Added 15 of 2004 s. 9)*

- (4) A Contractors Registration Committee is required to meet as often as the Building Authority directs.
- (5) A person who is a member of the Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel or the Registered Contractors' Disciplinary Board Panel is not eligible for appointment to the Contractors Registration Committee.
(Amended 15 of 2004 s. 9)
- (6) The members of the committee elect the Chairman from the members of the committee other than the representative of the Building Authority.
- (7) The Building Authority appoints an officer of the Buildings Department as the secretary of the committee, who is not a member of the committee and may not cast a vote.
- (8) A quorum for a meeting of the committee is the Chairman, the Building Authority's representative and 3 other members of the committee.

(Replaced 54 of 1996 s. 9)

8A. Registers of contractors, etc.

- (1) The Building Authority is to keep—
 - (a) a register of general building contractors who are qualified to perform the duties of a general building contractor; *(Amended 20 of 2008 s. 10)*
 - (b) a register of specialist contractors who are qualified to carry out specialized works specified in the category in the sub-register in which they are entered; and *(Amended 20 of 2008 s. 10)*
 - (c) a register or provisional register of minor works contractors who are qualified to carry out minor works belonging to the class, type and item specified in the

register in which they are registered. (*Added 20 of 2008 s. 10*)

- (2) The Building Authority may by notice in the Gazette specify different categories of specialized works and is to maintain sub-registers in the register of specialist contractors for the different categories.
- (3) The Building Authority is required to publish a list of the names of the contractors in each register annually in the Gazette.
- (4) The Building Authority may remove from—
 - (a) the register of general building contractors the name of a registered general building contractor who ceases, for any reason, to engage in the business of building works or street works;
 - (b) the register of specialist contractors the name of a registered specialist contractor who ceases, for any reason, to engage in the relevant specialized works for which he is registered; and (*Amended 20 of 2008 s. 10*)
 - (c) the register or provisional register of minor works contractors the name of a registered minor works contractor who ceases, for any reason, to carry out minor works belonging to the class, type and item specified in the register in which he is registered. (*Added 20 of 2008 s. 10*)
- (5) The Building Authority may remove the name of a partner, director or other person appointed by a body corporate to act for it for the purposes of this Ordinance of a registered general building contractor, a registered specialist contractor or a registered minor works contractor— (*Amended 20 of 2008 s. 10*)
 - (a) whose name is removed under subsection (4); or

- (b) if a disciplinary board appointed under section 11 orders the removal of the name.
- (6) The Building Authority shall make available the information specified in subsection (7) for public inspection at any reasonable time to facilitate any member of the public to ascertain—
 - (a) whether he is, in relation to any matter connected with any activity under this Ordinance, dealing with a contractor registered under this Ordinance; and
 - (b) the particulars of a contractor so registered. (*Added 20 of 2008 s. 10*)
- (7) The information specified for the purposes of subsection (6) is—
 - (a) the name, registration number and the expiry date of the registration of any registered general building contractor, registered specialist contractor or registered minor works contractor; and
 - (b) the name of the person appointed by a registered contractor referred to in paragraph (a) to act on the registered contractor's behalf for the purposes of this Ordinance. (*Added 20 of 2008 s. 10*)

(Added 54 of 1996 s. 9)

8B. Application for registration as a contractor

- (1) An applicant for registration as a general building contractor or a specialist contractor is required to apply to the Building Authority in the specified form.
- (2) An applicant must satisfy the Building Authority on—
 - (a) if it is a corporation, the adequacy of its management structure;

- (b) the appropriate experience and qualifications of his personnel;
 - (c) his ability to have access to plant and resources;
 - (d) the ability of the person appointed by the applicant to act for the applicant for the purposes of this Ordinance to understand building works and street works through relevant experience and a general knowledge of the basic statutory requirements.
- (3) An applicant for registration as a specialist contractor must satisfy the Building Authority that he has the necessary experience and, where appropriate, professional and academic qualifications, to undertake work in the specialist category.
- (4) *(Repealed 15 of 2004 s. 10)*
- (5) An applicant is to—
 - (a) *(Repealed 15 of 2004 s. 10)*
 - (b) pay the prescribed fee for the application.
- (6) The Building Authority is to refer an application to the relevant Contractors Registration Committee. *(Amended 15 of 2004 s. 10)*
- (7) The Building Authority, within 3 months of the date of the meeting of the relevant Contractors Registration Committee at which the application is considered, is required to— *(Amended 15 of 2004 s. 10)*
 - (a) on payment by the applicant of the prescribed fee for registering the applicant's name, publish it in the Gazette, enter it in the appropriate register and issue a certificate of registration; or
 - (b) inform the applicant that his application has been deferred for a period not exceeding 6 months; or
 - (c) refuse the application.

- (8) The Building Authority is to have regard to the qualifications, competence and experience of—
- (a) the applicant in considering an application for inclusion in the register of general building contractors or the register of specialist contractors;
 - (b) the directors, other officers and any person appointed by the applicant to act for it for the purposes of this Ordinance if the applicant is a body corporate,
- and may require the applicant to submit relevant information and documentary evidence to support a claim to qualifications, competence or experience.
- (9) The Building Authority may take into account relevant experience in Hong Kong as a qualification in considering an application for inclusion in the register of general building contractors.
- (10) The Building Authority must not include the name of an applicant in the register of general building contractors or the register of specialist contractors unless the relevant Contractors Registration Committee recommends him.
(Amended 15 of 2004 s. 10)
- (11) A contractor's name may be included in both the register of general building contractors and the register of specialist contractors and in different sub-registers of specialist contractors if he has the relevant qualifications.
- (12) A registration under this section expires, unless the contractor's name is removed from the relevant register by order of a disciplinary board, on the expiry of 3 years beginning on the date of inclusion of his name in the register.
(Added 15 of 2004 s. 10)

(Added 54 of 1996 s. 9)

8C. Renewal of registration as a contractor

- (1) A contractor may apply to the Building Authority for the renewal of his registration—
 - (a) if his name is on any one of the registers. *(Replaced 15 of 2004 s. 11)*
 - (b) *(Repealed 15 of 2004 s. 11)*
- (2) An application for renewal of registration must—
 - (a) be in the specified form;
 - (b) be accompanied by a declaration in the specified form, the information and the documentary proof that the Building Authority may reasonably require to be satisfied that the applicant is suitable to continue to be registered;
 - (c) be received by the Building Authority not earlier than 4 months and not later than 28 days prior to the date of the expiry of the relevant registration; and *(Amended 15 of 2004 s. 11)*
 - (d) *(Repealed 15 of 2004 s. 11)*
 - (e) be accompanied by the prescribed renewal fee.
- (3) The registration of a contractor will continue to be in force if he makes an application for renewal within the time limit and pays the renewal fee until his application for renewal is finalised by the Building Authority, subject to any decision of the Registered Contractors' Disciplinary Board.
- (4) The Building Authority may seek the advice of the relevant Contractors Registration Committee on the renewal of registration. *(Amended 15 of 2004 s. 11)*
- (5) The Building Authority may refuse an application for renewal of registration—

- (a) if he is satisfied that the applicant is no longer suitable (for any reason) for registration on the relevant register; or
 - (b) if the applicant fails to provide relevant information and documentary proof required by the Building Authority including, but not limited to, updated information on matters supplied on previous applications for registration or renewal of registration.
- (6) Subject to subsection (6A), the Building Authority shall remove the name of a person from a register if the Building Authority—
 - (a) does not receive an application made by the person for renewal of registration made in accordance with subsection (2); or
 - (b) has refused an application made by the person under subsection (5) and sent a notice by registered post to his last known address notifying him of the refusal. *(Replaced 20 of 2008 s. 11)*
- (6A) The removal of a name under subsection (6)(a) becomes effective immediately after the date of expiry of the existing registration. *(Added 20 of 2008 s. 11)*
- (6B) A notice under subsection (6)(b) shall specify the effective date of removal, which shall not be earlier than the date of expiry of the existing registration. *(Added 20 of 2008 s. 11)*
- (7) The Building Authority is to issue a certificate of registration on renewing the registration of a contractor.
- (8) A registration renewed under this section expires, unless the contractor's name is removed from the relevant register by order of a disciplinary board, on the expiry of 3 years beginning on the date of the expiry of the previous registration. *(Added 15 of 2004 s. 11)*

(Added 54 of 1996 s. 9)

8D. Restoring name to register of contractors

- (1) A contractor whose name is removed under section 8C(6) may, within 2 years of the date of the expiry of the registration, apply for his name to be restored to the register.
- (2) An application under subsection (1) must—
 - (a) be accompanied by a declaration in the specified form, the information and the documentary proof that the Building Authority may reasonably require to be satisfied that the applicant is suitable to be registered; and *(Amended 15 of 2004 s. 12)*
 - (b) *(Repealed 15 of 2004 s. 12)*
 - (c) be accompanied by the prescribed restoration fee and the prescribed registration fee.
- (3) The Building Authority may seek the advice of the relevant Contractors Registration Committee on the restoration of name to the register. *(Amended 15 of 2004 s. 12)*
- (4) The Building Authority, if he allows an application, is to issue to the applicant a certificate of registration and restore the name of the applicant to the relevant register.
- (5) A registration restored under this section expires, unless the contractor's name is removed from the relevant register by order of a disciplinary board, on the expiry of 3 years beginning on the date of restoration of the applicant's name to the register. *(Added 15 of 2004 s. 12)*

(Added 54 of 1996 s. 9)

8E. Building Authority to give reasons

The Building Authority is required to give reasons in writing for a decision not to include, retain or restore a contractor's name in a

register at the time of giving notice of the refusal.

(Added 54 of 1996 s. 9)

8F. Effective dates

- (1) A registration is effective—
 - (a) for an initial registration or a restoration to a register, from the date of the registration or restoration; and
 - (b) for a renewal of registration, from the date of the expiry of the previous registration.
- (2) A registration expires on the expiry of the period specified in the certificate of registration unless the contractor's name is removed from the relevant register by order of a disciplinary board.
- (3) A reference to the expiry of a registration is construed according to this section. *(Amended 15 of 2004 s. 13)*

(Added 54 of 1996 s. 9)

8G. *(Repealed 15 of 2004 s. 14)*

9. Appointment and duties of registered contractors

- (1) A person is required to appoint a registered general building contractor to carry out for him building works or street works other than— *(Amended 20 of 2008 s. 12)*
 - (a) specialized works; and
 - (b) minor works. *(Amended 20 of 2008 s. 12)*
- (2) A person is required to appoint a registered specialist contractor to carry out for him specialized works (other than the specialized works designated as minor works) of the category for which the contractor is registered. *(Amended 20 of 2008 s. 12)*

- (3) A person is required to appoint another registered general building contractor to continue to carry out for him building works or street works other than specialized works if the appointed registered general building contractor for the works is unwilling or unable to act.
- (4) A person is required to appoint another registered specialist contractor to continue to carry out for him specialized works of the category for which the contractor is registered if the appointed registered specialist contractor for the works is unwilling or unable to act.
- (5) A registered general building contractor appointed to carry out building works or street works other than specialized works is required to—
 - (a) provide continuous supervision to the carrying out of the works in accordance with his supervision plan;
 - (b) notify the Building Authority of any contravention of the regulations that would result from carrying out the works shown in the plan approved by the Building Authority for the works; and
 - (c) comply generally with this Ordinance.
- (6) A registered specialist contractor appointed to carry out specialized works is required to—
 - (a) provide continuous supervision to the carrying out of the works in accordance with his supervision plan;
 - (b) notify the Building Authority of any contravention of the regulations that would result from carrying out the works shown in the plan approved by the Building Authority for the works; and
 - (c) comply generally with this Ordinance.
- (7) *(Repealed 15 of 2004 s. 15)*

(Replaced 54 of 1996 s. 10)

9AA. Appointment and duties of prescribed registered contractors: minor works

- (1) This section applies both to minor works that are commenced or carried out with the approval and consent of the Building Authority under section 14(1) and to minor works that are commenced or carried out without that approval and consent.
- (2) If minor works to which this section applies have been commenced or carried out and the person who arranged for the works to be commenced or carried out has knowingly failed to appoint a prescribed registered contractor required by the regulations to be appointed in respect of the minor works concerned, that person commits an offence.
- (3) For the purposes of subsection (2), a person who has appointed another person to arrange for the commencement or carrying out of minor works is not to be regarded as a person who arranged for the commencement or carrying out of minor works.
- (4) A prescribed registered contractor appointed to carry out minor works commenced otherwise than under the simplified requirements shall—
 - (a) provide continuous supervision in relation to the carrying out of the minor works in accordance with his supervision plan;
 - (b) notify the Building Authority of any contravention of the regulations which would result from the carrying out of any works shown in the plan approved by the Building Authority for the minor works; and
 - (c) comply generally with this Ordinance.
- (5) A prescribed registered contractor appointed to carry out minor works commenced under the simplified requirements

shall, in relation to the works, comply with the simplified requirements.

- (6) Without affecting the generality of subsection (5), the prescribed registered contractor appointed to carry out minor works commenced under the simplified requirements shall also—
- (a) provide continuous supervision in relation to the carrying out of the minor works commenced under the simplified requirements;
 - (b) notify the Building Authority of any contravention of the regulations which would result from the carrying out of any works shown in the plan required to be submitted to the Building Authority in respect of the minor works commenced under the simplified requirements; and
 - (c) comply generally with this Ordinance.

(Added 20 of 2008 s. 13)

9A. Appeals from Registration Committees

- (1) A person who is aggrieved by a decision of a Registration Committee under this Part may appeal to a judge of the Court of First Instance.
- (2) On an appeal the judge may confirm, reverse or vary the decision of the Registration Committee. *(Amended 16 of 2011 s. 12)*
- (3) The practice for the appeal is subject to any rules of court made under the High Court Ordinance (Cap. 4).
- (4) *(Repealed 16 of 2011 s. 12)*

(Added 54 of 1996 s. 10. Amended 25 of 1998 s. 2)

10. *(Repealed 43 of 1993 s. 3)*

11. Appointment and powers of disciplinary board

- (1) The Secretary may from time to time, appoint a disciplinary board. (*Amended 77 of 1994 s. 7; 54 of 1996 s. 11; L.N. 330 of 1999; L.N. 106 of 2002; L.N. 130 of 2007; 20 of 2008 s. 14*)
- (2) Every board appointed to hear and determine any proceedings against a registered general building contractor shall consist of— (*Amended 77 of 1994 s. 7; 54 of 1996 s. 11*)
 - (a) 3 persons who are members of the Registered Contractors' Disciplinary Board Panel appointed under section 11A; (*Amended 36 of 1997 s. 4*)
 - (b) 4 persons who are members of the Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel appointed under section 5A of whom— (*Amended 54 of 1996 s. 11; 15 of 2004 s. 16*)
 - (i) 1 shall be a person referred to in section 5A(2)(a);
 - (ii) 1 shall be a person referred to in section 5A(2)(b); (*Amended E.R. 3 of 2017*)
 - (iii) 1 shall be a person referred to in section 5A(2)(c); and (*Amended E.R. 3 of 2017*)
 - (iv) 1 shall be a person referred to in section 5A(2)(d); (*Added 54 of 1996 s. 11*)
 - (c) 1 person selected from among the persons nominated in accordance with subsection (4A). (*Replaced 36 of 1997 s. 4*)
 - (d) (*Repealed 36 of 1997 s. 4*)
- (3) Every board appointed to hear and determine any proceedings under section 13 against a registered specialist contractor

shall consist of— (*Amended 43 of 1987 s. 44; 77 of 1994 s. 7; 54 of 1996 s. 11*)

- (a) 2 persons who are members of the Registered Contractors' Disciplinary Board Panel who are in the same sub-register of specialized works as the specialist contractor about whom the disciplinary board is to inquire; (*Replaced 54 of 1996 s. 11*)
- (b) (i) in the case where the matters to be brought to the notice of the board relate to geotechnical works, 5 persons who are members of the Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel of whom—
 - (A) 1 shall be a person referred to in section 5A(2)(a);
 - (B) 1 shall be a person referred to in section 5A(2)(b);
 - (C) 1 shall be a person referred to in section 5A(2)(c);
 - (D) 1 shall be a person referred to in section 5A(2)(d); and
 - (E) 1 shall be a person referred to in section 5A(2)(e); and
- (ii) in other cases, 4 persons who are members of the Panel referred to in subparagraph (i) of whom—
 - (A) 1 shall be a person referred to in section 5A(2)(a);
 - (B) 1 shall be a person referred to in section 5A(2)(b);
 - (C) 1 shall be a person referred to in section 5A(2)(c); and

- (D) 1 shall be a person referred to in section 5A(2)(d); *(Replaced 15 of 2004 s. 16)*
- (c) 1 person selected from among the persons nominated in accordance with subsection (4A). *(Replaced 36 of 1997 s. 4)*
- (d) *(Repealed 54 of 1996 s. 11)*
- (3AA) Every board appointed to hear and determine any proceedings against a registered minor works contractor shall consist of—
- (a) 2 persons who are members of the Registered Contractors' Disciplinary Board Panel appointed under section 11A;
- (b) 2 persons who are members of the Authorized Persons', Registered Structural Engineers' and Registered Geotechnical Engineers' Disciplinary Board Panel appointed under section 5A; and
- (c) 1 person selected from among the persons nominated in accordance with subsection (4A). *(Added 20 of 2008 s. 14)*
- (3A) The chairman of a disciplinary board shall appoint a legal adviser to assist in the conduct of the hearing of the disciplinary proceedings and to advise the disciplinary board on points of law that arise during the hearing. The disciplinary board may confer with the legal adviser after the conclusion of the hearing and before it hands down its decision but only after giving the person who is the subject of the hearing and his legal representative, if any, the right to be present while the legal adviser gives advice to the disciplinary board and the right to comment on the matters raised by the legal adviser to the disciplinary board. *(Added 54 of 1996 s. 11)*
- (3B) A registered general building contractor, a registered specialist contractor or a registered minor works contractor, against

whom disciplinary proceedings are taken, is entitled to be represented by a legal practitioner at disciplinary proceedings. *(Added 54 of 1996 s. 11. Amended 20 of 2008 s. 14)*

(4) The chairman of a disciplinary board appointed under subsection (1) shall be elected from the members of the board by its members.

(4A) For the purpose of subsections (2)(c), (3)(c) and (3AA)(c), the Building Authority is to invite such bodies as the Building Authority may think fit to nominate persons for the Secretary to consider for appointment to the disciplinary board. *(Added 36 of 1997 s. 4. Amended L.N. 330 of 1999; L.N. 106 of 2002; L.N. 130 of 2007; 20 of 2008 s. 14)*

(5) For the purposes of any inquiry under section 13, a disciplinary board appointed under this section shall have all such powers as are vested in the Court of First Instance in relation to— *(Amended 25 of 1998 s. 2)*

- (a) enforcing the attendance of witnesses and examining them upon oath or otherwise;
- (b) compelling the production of documents;
- (c) ordering the inspection of premises; and
- (d) entering upon and viewing premises.

(6) The members of any disciplinary board appointed under this section, other than persons who are in full-time employment in any office of emolument under the Government, shall be remunerated at such rate as the Chief Executive may determine from time to time or in any particular case. *(Added 16 of 1966 s. 4. Amended 62 of 2000 s. 3)*

(Amended 52 of 1974 s. 7; 36 of 1997 s. 4)

11A. Contractors' Disciplinary Board Panel

(1) There shall be a Registered Contractors' Disciplinary Board

Panel, which shall be appointed by the Chief Executive.
(Amended 62 of 2000 s. 3)

(2) (Repealed 54 of 1996 s. 12)

(3) The members of the Registered Contractors' Disciplinary Board Panel shall hold office for 3 years but shall be eligible for reappointment.

(Added 52 of 1974 s. 8)

11AA. Secretary to the disciplinary board

(1) There shall be a secretary to the disciplinary board for the purpose of providing administrative services to a disciplinary board appointed under section 11.

(2) The secretary to the disciplinary board shall be— (Amended 16 of 2011 s. 13)

(a) appointed by the Secretary; (Amended L.N. 330 of 1999; L.N. 106 of 2002; L.N. 130 of 2007)

(b) a public officer; and

(c) a person who is not a member of the disciplinary board appointed under section 11.

(Added 36 of 1997 s. 5. Amended 16 of 2011 s. 13)

12. (Repealed 77 of 1994 s. 8)

13. Disciplinary proceedings for contractors

(1) The Building Authority may bring to the notice of a disciplinary board appointed under section 11 the matters set out in subsection (2) in relation to a registered general building contractor, a registered specialist contractor or a registered minor works contractor if the conduct referred to the disciplinary board may— (Amended 20 of 2008 s. 15)

(a) render the contractor unfit to be on the register;

- (b) make the further inclusion of the contractor in the register prejudicial to the due administration of this Ordinance; (*Amended 20 of 2008 s. 15*)
 - (c) render the contractor deserving of suspension from the register, a fine or a reprimand; (*Amended 20 of 2008 s. 15*)
 - (d) render the contractor unfit for certifying or carrying out minor works commenced under the simplified requirements; (*Added 20 of 2008 s. 15*)
 - (e) make further certification of or carrying out minor works commenced under the simplified requirements by the contractor prejudicial to the due administration of this Ordinance; (*Added 20 of 2008 s. 15. Amended 16 of 2011 s. 14*)
 - (f) render the contractor deserving of suspension from certifying or carrying out minor works commenced under the simplified requirements; (*Added 20 of 2008 s. 15. Amended 16 of 2011 s. 14*)
 - (g) render the contractor unfit for certifying any prescribed inspection, or certifying or supervising any prescribed repair, in respect of a window in a building; (*Added 16 of 2011 s. 14*)
 - (h) make further certification of any prescribed inspection, or certification or supervision of any prescribed repair, in respect of a window in a building by that contractor prejudicial to the due administration of this Ordinance; or (*Added 16 of 2011 s. 14*)
 - (i) render the contractor deserving of suspension from certifying any prescribed inspection, or certifying or supervising any prescribed repair, in respect of a window in a building. (*Added 16 of 2011 s. 14*)
- (2) The matters referred to in subsection (1) are that the person—

- (a) has been convicted by any court of an offence relating to building works or street works;
- (b) has been negligent or has misconducted himself in building works or street works;
- (c) has deviated in a material manner from a supervision plan without reasonable cause;
- (d) has drawn up a supervision plan that does not comply with the material requirements of this Ordinance;
- (e) has repeatedly drawn up supervision plans that do not comply with the requirements of this Ordinance;
(Amended 20 of 2008 s. 15)
- (f) has certified minor works commenced under the simplified requirements that have been carried out in contravention of this Ordinance; *(Added 20 of 2008 s. 15)*
- (g) has supervised minor works commenced under the simplified requirements that have been carried out in such a manner that they have caused injury to a person (whether or not while under such supervision); *(Added 20 of 2008 s. 15)*
- (h) has carried out minor works commenced under the simplified requirements in such a manner that they have caused injury to a person; *(Added 20 of 2008 s. 15)*
- (i) has carried out building works (other than minor works) under the simplified requirements as if it were minor works commenced under the simplified requirements;
(Added 20 of 2008 s. 15. Amended 16 of 2011 s. 14)
- (j) has certified building works (other than minor works) as if it were minor works commenced under the simplified requirements; or *(Added 20 of 2008 s. 15. Amended 16 of 2011 s. 14)*

- (k) has failed to discharge the duties, or abide by the requirements, imposed on a qualified person, registered general building contractor or registered minor works contractor under this Ordinance in respect of a prescribed inspection or prescribed repair. *(Added 16 of 2011 s. 14)*
- (3) The Building Authority may, in bringing to the notice of a disciplinary board a conviction, negligence or misconduct of a registered contractor that is a body corporate or is operating as a partnership, refer the names of the directors, officers, any person appointed to act for the body corporate for the purposes of this Ordinance and its partners to the disciplinary board for its consideration and action.
- (4) Where, after due inquiry, the disciplinary board is satisfied that the registered contractor or the director or officer or the person appointed by the registered contractor to act on his behalf for the purposes of this Ordinance has been convicted as described in subsection (2)(a) or done an act described in subsection (2)(b), (c), (d), (e), (f), (g), (h), (i) or (j) or failed to discharge the duties or abide by the requirements mentioned in subsection (2)(k), the disciplinary board may— *(Amended 16 of 2011 s. 14)*
- (a) order that the name of the registered contractor or the name of the director, officer or person be removed from the relevant register, either permanently or for such period as the disciplinary board thinks fit;
- (b) order that the registered contractor or the director, officer or person be fined—
- (i) in the case of building works (other than minor works), a sum not exceeding \$250,000; or

- (ii) in the case of a prescribed inspection in respect of a window in a building or minor works, a sum not exceeding \$150,000; (*Amended 16 of 2011 s. 14*)
 - (c) order that the registered contractor or the director, officer or person be reprimanded; (*Amended 16 of 2011 s. 14*)
 - (d) in the case of a registered contractor who is a registered general building contractor or a registered specialist contractor, order that he be prohibited from certifying or carrying out any minor works commenced under the simplified requirements, either permanently or for such period as the disciplinary board thinks fit; or (*Replaced 20 of 2008 s. 15. Amended 16 of 2011 s. 14*)
 - (e) in the case of a registered contractor who is a registered general building contractor or registered minor works contractor, order that the contractor be prohibited from certifying any prescribed inspection, or certifying or supervising any prescribed repair, in respect of a window in a building, either permanently or for any period that the disciplinary board thinks fit. (*Added 16 of 2011 s. 14*)
- (4A) Where the disciplinary board makes an order under subsection (4), it shall order that its findings and order be published in the Gazette. (*Added 15 of 2004 s. 17*)
- (5) In making an order in respect of a director, officer or other person appointed by a registered contractor to act on its behalf for the purposes of this Ordinance, the board may remove the director, officer or other person from any other company with respect to which he is registered under this Ordinance.
- (6) A disciplinary board may make an order as it thinks fit for the payment of the costs of the inquiry or for the payment of the costs of the Building Authority or of the contractor, director, officer or other person about whom the inquiry is held.

- (6A) The amount referred to in subsection (4)(b) and any costs of inquiry ordered to be paid under subsection (6) are recoverable as a debt due to the Government. *(Added 20 of 2008 s. 15)*
- (7) A registered general building contractor, registered specialist contractor, registered minor works contractor, director, officer or other person aggrieved by an order made in respect of him under this section may appeal to a judge of the Court of First Instance. *(Amended 25 of 1998 s. 2; 16 of 2011 s. 14)*
- (8) On an appeal the judge may confirm, reverse or vary the order of the disciplinary board.
- (9) The practice for the appeal is subject to any rules of court made under the High Court Ordinance (Cap. 4). *(Amended 25 of 1998 s. 2)*
- (10) *(Repealed 16 of 2011 s. 14)*
- (Replaced 54 of 1996 s. 13)*
- (Format changes—E.R. 2 of 2012)*

13A. Appeal against Building Authority's decision

- (1) An applicant for registration, renewal of registration or restoration of his name to a register who is dissatisfied with a decision of the Building Authority may appeal to a judge of the Court of First Instance.
- (2) On an appeal the judge may confirm, reverse or vary the decision of the Building Authority.
- (3) The practice for the appeal is subject to any rules of court made under the High Court Ordinance (Cap. 4).
- (4) *(Repealed 16 of 2011 s. 15)*

Buildings Ordinance

Part 1

1-136

Section 13A

Cap. 123

(Added 54 of 1996 s. 14. Amended 25 of 1998 s. 2)
